

		internal case strategy, and requests a \$1,500 reduction. (Rankell Decl., ¶ 20.) The billing entries show that counsel reviewed the purchase and repair records, researched the alleged defects and related technical materials, and prepared a defect definition for discovery. This work appears reasonably necessary to investigate Plaintiffs' claims and prepare discovery. The Court therefore declines to reduce these amounts. Total Award Plaintiffs, in the reply, reduced the operative fee request from \$23,539 to \$22,527, by reducing the motion-to-tax component from \$2,300 to the \$1,288 actually incurred. The Court further reduces the request by \$920 for additional fee-motion work. Accordingly, Plaintiffs are awarded \$21,607 in attorney fees. Moving parties to give notice.
110	Maurstad vs. General Motors LLC 25-01486032	Motion for Attorney Fees The Motion for Attorney Fees brought by Plaintiff Britt Kristin Maurstad is GRANTED in part, pursuant to Civil Code section 1794, subdivision (d). It is undisputed that the Song-Beverly Act allows a prevailing plaintiff to recover "attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, §1794, subd. (d).) Additionally, it is undisputed Plaintiff qualifies as a "prevailing party," for purposes of this provision. Per the parties, a Settlement was entered into wherein it was agreed that General Motors would pay Plaintiff \$90,000, Plaintiff would be considered the "prevailing party," and reasonable attorneys' fees and costs would

	be determined by motion. (See ¶14-¶19 of Farrell Declaration and ¶11-¶12 of Kay Declaration.) Further, pursuant to Code of Civil Procedure section 1032, a “prevailing party” includes “the party with a net monetary recovery. (Code Civ. Proc., § 1032, subd. (a)(4).) “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award. (Ibid.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Ibid.) “ ‘In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other case.’” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41; See also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) The Court approves the hourly rate of \$600, requested by Counsel David Farrell. The Court finds this requested rate is in line with rates sought within the lemon law community in Orange County, for attorneys with over 30 years of experience, such as Mr. Farrell. (See ¶28-¶35 of Farrell Declaration.) Thereafter, following a careful review of the billing submitted with this motion, and the briefing herein, the
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		Court determines the reasonable amount of hours incurred in this action is 35.7, which results in a fee award of \$21,420. Slight reductions were made to account for Counsel’s experience, as well as Counsel’s admitted use of templates. (See Reply: 5:8-11.) Additional reductions were made to correspondence and consultation billings, both on the basis the tasks appear excessive and due to vague descriptions, which prevented further review of the reasonableness. Slight reductions were made in instances where it appeared “the attorney [was] doing work that could have been done by paralegals.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41.) Finally, slight reductions were made to the hours billed in connection with the instant motion, given the relative simplicity of the same. With respect to costs, it is undisputed that the parties incorporated the language of Code of Civil Procedure section 871.25, subdivision (d)(iii) into their Settlement and agreed that attorneys’ fees and costs would be determined via a single motion. (¶16 of Farrell Declaration and ¶11 of Kay Declaration.) Based on the above, the Court will proceed to award costs in the amount of \$1,387.55, which is the initial amount sought by Plaintiff. (¶26 of Farrell Declaration and Exhibit B thereto.) Typically, “[i]n ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face.” (Foothill-De Anza Community College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 29.) “If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.” (Ibid. [internal quotations omitted].) “[I]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the [prevailing party], and the burden of
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		showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.) Here, Counsel for Plaintiff declares the above costs were incurred in this action, and the costs appear reasonable on their face. (¶26 of Farrell Declaration and Exhibit B thereto.) As indicated above, all costs “reasonably incurred by the buyer in connection with the commencement and prosecution of such actions” are recoverable. (Civ. Code, § 1794, subd. (d).) “[I]t is clear the Legislature intended the word ‘expenses’ to cover items not included in the detailed statutory definition of ‘costs.’” (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137 [disapproved on other grounds in Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189].) Additionally, regardless, filing fees, service of process fees, and fees for “the electronic filing or service of documents through an electronic service provider” are recoverable. (See Code Civ. Proc., § 1033.5, subd. (a)(1), (4), and (14).) As Defendant failed to dispute any specific item of cost as unreasonable and as the costs appear reasonable on their face, the request for costs in the amount of \$1,387.55 is granted 2. Case Management Conference
111	Mejia Villa vs. Castaneda 23-01314626	1. Motion for Sanctions Plaintiff, SARAI MEJIA VILLA (“Plaintiff”) will seek monetary sanctions against Defendant Esther Castaneda (“Esther”) and Counselor ILIAN ALCHEHAYED (“Counsel”), for filing the Motion for Judgment on the Pleadings.